



**LOI- 2023/2024**

Listing Broker: SKG

Date: 07/28/2024

Selling Broker: SKG

Listing ID: SKG

THIS FORM HAS BEEN PROVIDED BY TEDDMIN LLC (HEREINAFTER "BUSINESS BROKER") AS A CONVENIENCE TO THE PARTIES TO ENABLE THEM TO FACILITATE THE PROSPECTIVE TRANSACTIONS OFFERED HEREIN. IT IS NOT INTENDED AS, AND SHOULD NOT BE INTERPRETED AS A BINDING AGREEMENT OF SALE OR PURCHASE. IT IS A REFLECTION ONLY OF THE PARTIES INTENTIONS.

Purchaser(s): Mukesh C. Patel located 119 Cottage Street, Jersey City, New Jersey 07306

Business to be purchased: Rudra 131 LLC D/B/A Cooks Grocery & Deli

And located at: 399 Park Avenue, Piscataway, New Jersey 08854

1. Form of Transaction: ☒ Asset Purchase ☐ Stock Purchase, ☐ Net Lease ☐ Other
2. Purchase Price: The total purchase price for subject purchase/sale shall be \$ 70,000.00
  - a. Refundable Good Faith Deposit: Upon Seller's execution of this contract agreement, Buyer will place on deposit the sum of (\$10,000.00) dollars, to be held in Attorney/ Brokers Escrow Account/ Sellers Savings Account. Such deposit will be returned to the Buyer at any time if this agreement is terminated by the Buyer or applied to closing. (Checks made payable to "Attorney Escrow Account".)
  - b. Down payment of \$ XXX shall be paid at contract signing, which represents the entire cash deposit.
  - c. Balance of \$60,000 to be paid at closing.
3. Note Payable Terms for Inventory:
  - a. To be executed for remainder of purchase price totaling: XXX-XXX-XXX  
At a rate 0% to be payable in equal monthly installments over XXX Months.
  - b. Additional Terms: Inventory to be Counted at Closing
4. Assumed Liabilities: \_\_\_\_\_
5. Contingencies: The purchase/sale transaction shall be made expressly contingent upon the occurrence of the following:
  - a. Assumption, renewal or modification of Business lease arrangements to the buyer's satisfaction.
  - b. Mutual acceptance of list of furniture, fixtures, equipment.

c. Inclusion of inventory. ☒ No ☐ Yes\_\_

d. Seller standard non-compete for at least two years;

e. Complete review of financial information pertaining to the business to the satisfaction of the Buyer.

f. Subject to transferability of all applicable licenses.

g. Seller agrees to provide 2 Weeks of full time assistance to allow for a smooth transition subsequent to closing.

h. Other (specify) The Store all equipment and contents are sold AS-IS.

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6. Purchase Price Allocation: The allocation of the purchase price of this transaction for accounting and tax purposes will be agreed upon between the parties prior to closing.

7. Due Diligence: The Buyer shall conduct due diligence for no longer than 2 Week from the inception of this agreement.

8. Buyer Responsibility: It is the sole responsibility of the Buyer to perform due diligence. Buyers are advised to seek counsel from an Attorney, Certified Public Accountant, and any other parties necessary to make an informed decision regarding the purchase of this business. It is understood that all information pertaining to the business, financial or otherwise, provided by TEDDMIN LLC to the buyer, are exclusively representations of the Seller, and TEDDMIN LLC shall not be held liable for their content or accuracy. Buyer and Seller jointly agree to hold TEDDMIN LLC and/or its agents harmless for any misrepresentations or omissions made by the Seller.

9. Purchase/Sale Agreement: The parties hereto will agree to execute a formal Purchase/Sale Agreement containing the terms found in this letter and any other usual and customary representations, warranties and indemnifications contained in agreements of this nature.

10. Contract: This transaction shall go to contract no later than TBD following the completion of due diligence.

11. Closing: The closing of this transaction will take place as promptly as possible, estimated date: TBD

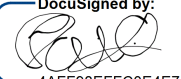
12. Brokerage Fees POC: The Brokers Fees due to TEDDMIN BUSINESS BROKERS & ADVISORS, will be payable at closing (POC) under Finders Fee Listing Agreement with the Seller.
13. Non-Circumvention: Buyer agrees NOT to circumvent, in any manner, the terms agreed to in his/her Buyer Registration Agreement with TEDDMIN LLC
14. It is agreed to that Seller will not entertain directly or indirectly, solicit or encourage, any inquiries or proposals from, or participate in any discussions or negotiations with, or provide any information to any third party with respect to a potential sale, transfer, merger or similar transaction involving the businesses to be purchased, or any associated property or assets until the earlier of satisfactory, Completion of the contract or (Date) TBD

Notwithstanding anything herein to the contrary, paragraphs 12, 13 & 14 above shall be deemed binding and legally enforceable between the parties and **TEDDMIN LLC**. An executed facsimile copy of this agreement shall have the same force and effect as an original.

Agreed to on this By and 28 day of July, 2024

Between:

Seller: Nainesh & Jinkal ben. N Patel  
399 Park Avenue,  
Piscataway, NJ 08854

DocuSigned by:  
  
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Seller Signature

Buyer : Mukesh C. Patel  
119 Cottage Street  
Jersey City, NJ

Signed by:  
  
9A2986971103461...

Buyer Signatures

Seller's Email Address  
[Sunshine.rudra@gmail.com](mailto:Sunshine.rudra@gmail.com)

Seller's Attorney: TBD

Name: TBD

Address:

City/State/Zip

Phone:

Fax

Email:

Buyer's Email Address  
[mukeshchandra1919@gmail.com](mailto:mukeshchandra1919@gmail.com)

Purchaser's Attorney: TBD

Name: TBD

Address:

City/State/Zip :

Phone:

Fax:

Email: